

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, August 24 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM 22-CIV-01964 LINE 1	MICHAEL MITCHELL, ET AL. VS. CITY OF BURLINGAME, ET AL.
MICHAEL MITCHELL CITY OF BURLINGAME	JULIE L. FIEBER TODD H. MASTER

CROSS-DEFENDANT: ANVIL BUILDERS, INC.'S MOTION FOR APPLICATION FOR LEAVE TO FILE CROSS-COMPLAINT

TENTATIVE RULING:

The Motion is DENIED. The moving party seeks leave to file what appears to be a permissive cross-complaint against brand new parties on the (metaphorical) eve of trial. The moving party impliedly concedes that it was always aware of the existence of the new parties. The only explanation for the extremely late attempt to add them is that the current counsel for the moving party is “new”. There is no showing supporting a finding of either good faith or interests of justice. Granting the motion will likely result in another delay of the trial of at least a year in a case that is more than 4 years old. That is not in the interests of justice. And counsel for the moving party made its appearance on August 29, 2025, apparently was aware of its desire to file a cross-complaint by no later than January 2026 and then inexplicably waited another five months to file this motion. It is notable to the Court, although not dispositive, that counsel writes “O’Brien Law P.C. has only been in this matter approximately 6 months”, which is not factual. As noted, O’Brien Law substituted in almost 10 months prior to filing this motion. A reasonable inference that can be drawn from this timeline is that the purpose of this motion is to delay the trial.

In a bullet point form replete with typos and changes in font, moving party cites three cases:

Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94 reversed a trial court’s failure to grant a motion to file a cross-complaint under the good faith standard. But moving party has provided no analysis as to why that standard applies. *Silver* is applying Section 426.30 of the Code of Civil Procedure, which applies to cross-claims by a defendant **against a plaintiff**. These cross-claims are not against a plaintiff. And, moving party also does not cite a single piece of authority in support of the proposition that this is a compulsory cross-complaint whereas Plaintiff cites cases that support that it does not (that moving party does not even attempt to grapple with). But again, even if the good faith standard did apply, the most reasonable explanation for the timing of this motion is to delay trial. Even assuming that the Court were to ignore the **years** that the moving party was represented by counsel and did not seek leave to file these cross claims (which distinguishes this case from *Silver*), moving party provides no facts explaining how it “discovered” the “need” for them, when it “discovered” its “need” for them or why it waited five months from the time it clearly knew of the “need” for them to actually file the motion when it knew an already continued trial was scheduled. In contrast, Plaintiffs provide evidence that would support a conclusion that moving party knew or should have known of the existence of the potential cross-defendants for **years**.

County of Los Angeles v. Quinn Emanuel Urquhart & Sullivan (2025) 115 Cal.App.5th 489 is apparently only cited so that the moving party can distinguish it. But again, it is applying the standard for compulsory

counter-claims by a defendant against a plaintiff. Regardless, like *Quinn*, the moving party here waited an inexplicable and extended amount of time to seek leave.

Finally, it cites *Gherman v. Colburn* (1977) 72 Cal.App.3d 544, again presumably to distinguish it. And again, this is a compulsory counter-claim case. But as in *Gherman*, the Court does conclude, in affirming the decision of the trial court to deny amendment, that the most likely explanation for the timing of the motion, as here, was as a “tactical, strategic maneuver”.

In reply, the moving party argues in the last sentence of its reply brief that the new parties are necessary and cites Code of Civil Procedure 389. This argument is made for the first time in reply and the Court declines to consider it. But even if it did, the moving party provides no authority for the argument and it would be rejected on its merits. And despite being aware that the Court might apply the “interests of justice” standard, moving party does not even attempt to argue that it satisfies it (despite referencing it) and the Court deems that a waiver.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-00896 MOHAMMEDHOSSEIN SADGHE VS. NIKOLAS MACIAS, ET AL.

LINE 2

MOHAMMEDHOSSEIN SADGHE
NIKOLAS MACIAS

ELIVAHU YULI KAPLUNOVSKY
COREY M. POLLAK

DEFENDANTS: NIKOLAS MACIAS AND ALAN DE SILVA'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Corey M. Pollak to be relieved as counsel for defendants Nikolas Macias, Alan De Silva and Pit Stop Auto Services, LLC is denied without prejudice. The Pollak declaration states that the moving papers were served on defendants by mail at their last known address and that the address was confirmed as current by monthly statements which were not returned as undeliverable. However, the POS indicates defendants were served electronically. If the notice of motion is served electronically, California Rules of Court, rule 3.1362(d) provides that it must be accompanied by a declaration stating the electronic address is current. Current is defined to mean that the address has been confirmed within 30 days before filing the motion. The Pollak declaration does not indicate that the electronic service address has been confirmed as current.

However, if Mr. Pollack can cure this procedural deficiency by filing appropriate documents establishing that service was proper and provide courtesy copies to Dept11@sanmateocourt.org prior to 2 p.m. on Monday **and appears**, the Court will consider granting the motion.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

02:00 PM

24-CIV-03420 KYNA LIM VS. CITY OF MENLO PARK

LINE 2

KYNA LIM
CITY OF MENLO PARK

PRO PER
NICHOLAS SYREN

PLAINTIFF: KYNA LIM'S MOTION FOR RECONSIDERATION OF THE JULY 20, 2026 ORDER SUSTAINING DEFENDANT'S DEMURRER TO THE SECOND AMENDED COMPLAINT WITHOUT LEAVE TO AMEND, LIMITED TO THE COURT'S DETERMINATION DENYING LEAVE TO AMEND (CCP 1008(A)), OR, IN THE ALTERNATIVE, SUGGESTION THAT THE COURT RECONSIDER ON ITS OWN MOTION

TENTATIVE RULING:

The Court again notes that Plaintiff's proofs of service of the moving and reply papers include her declaration that she served the papers herself, which violates Code of Civil Procedure section 1013a, subdivision (1). Defendant does not object and has responded, so there is no prejudice, and the Court finds the defect to have been waived. Plaintiff is admonished not to sign proofs of service herself. Plaintiff Kyna Lim's Motion for Reconsideration, Etc. (the "Motion") is DENIED.

Background

Per the allegations of the Second Amended Complaint ("SAC"), Defendant failed to maintain its tree (the "Tree") that was adjacent to her property (the "Property"), damaging her water and sewer lines and her foundation, resulting in economic and health-related damages. Plaintiff repeatedly reported the issues with the Tree to another city years earlier (in 2015), believing it to be the responsible party. Plaintiff was redirected to Defendant in October 2023.

The Court sustained Defendant's demurrer to the SAC (the "Demurrer"), without leave to amend. (Minute Order, July 20, 2026 (the "Order").) Concerning leave to amend, the aspect of the order to which the Motion is directed, the Court held that:

While opposing the demurrer and repeatedly asking for leave to amend, Plaintiff has failed to identify any facts that Plaintiff contends Plaintiff could allege and that would cure the legal defects in the Second Amendment Complaint. This lawsuit is more than two years old and based on the facts Plaintiff has already alleged it seems highly unlikely that she will be able to plead around the very untimely nature of the lawsuit. Accordingly, leave to amend is tentatively DENIED as futile.

However, if Plaintiff believes it is possible to address the deficiencies identified in this tentative, Plaintiff must contest the tentative and appear to explain in reasonable detail what facts Plaintiff can allege to cure. If Plaintiff does, the Court will consider those facts and reconsider granting leave. (Order, p.6.)

Plaintiff did appear on July 20, 2026 and identified those facts that she contended she could add/delete to a Third Amended Complaint. But having considered those facts, the Court concluded that they would not cure the deficiencies.

Accordingly, Plaintiff brings the Motion seeking reconsideration of the Court's denial of leave to amend so that she may file a Third Amended Complaint ("TAC"). In the alternative to granting the Motion,

Plaintiff asks the Court to reconsider its denial of leave to amend *sua sponte*, pursuant to its inherent authority.

Section 1008 is the sole statute providing for a motion for reconsideration. (Code Civ. Proc., § 1008, subd. (e) (“No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.”).) Such a motion arises under subdivision (a), which requires that the movant “shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (a).)

The Court considering a motion for reconsideration rules in two steps: first, whether the motion meets the requirements of new or different facts, circumstances or law, and second, a re-evaluation of the merits of the original order. (*Randy’s Trucking, Inc. v. Sup. Ct. (Buttram)* (2023) 91 Cal.App.5th 818, 844.) The purpose of section 1008 is to conserve the trial Court’s resources by constraining litigants who would attempt to repeatedly bring the same motion or raise arguments and evidence already considered by the Court. (*Schacter v. Citigroup, Inc.* (2005) 126 Cal.App.4th 726, 736.)

In order to merit reconsideration, the moving party must show some fact or circumstance not previously before the Court for consideration, and a valid reason for not offering it earlier. (*Baldwin v. Home Sav. of America* (1997) 59 Cal.App.4th 1192, 1198 (*Baldwin*).) The burden under section 1008 is therefore akin to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not have discovered or produced it earlier with reasonable diligence. (*New York Times Co. v. Sup. Ct. (Wall St. Network, Ltd.)* (2005) 135 Cal.App.4th 206, 212-213.) A party seeking reconsideration of a prior order based on new or different facts, circumstances, or law must provide a satisfactory explanation for failing to present the information at the first hearing. (*Calif. Correctional Peace Officers Ass’n v. Virga* (2010) 181 Cal.App.4th 30, 47.) A motion for reconsideration is properly denied where it is based on evidence that could have been presented in connection with the original motion. (*Hennigan v. White* (2011) 199 Cal.App.4th 395, 405-06.)

Plaintiff asserts that she offers “one new fact” (MPA ISO Motion, 1:16)) that she could not have presented earlier, consisting of a written contractor’s estimate dated July 23, 2026, for the complete removal of the Tree’s remaining root mass and affected soil over the course of two to three work days for \$5,500. She argues that this evidence shows that the TAC could plead a continuing, abatable trespass, rather than the permanent trespass which the Court found, and which was the ground for the Court’s further finding that leave to amend would be futile.

As discussed above, the new fact must be such that the moving party could not have discovered or produced it earlier with reasonable diligence. (*NYT*, 135 Cal.App.4th at 212-213.) Plaintiff demonstrates that she was able to obtain a professional estimate of the root remediation cost in three days. The Motion is properly denied where it is based on evidence that could have been presented in connection with the SAC, or even Plaintiff’s Opposition to the Demurrer.

Regardless, the Motion asserts that the repair estimate means that the TAC could plead a continuing, abatable trespass, but by the label of its third cause of action, the SAC already had attempted to plead continuing trespass, and the Court found that it had failed to do so. Thus, the Motion simply “belatedly conjure[s] a legal theory different from that previously rejected,” which does not avail Plaintiff of the ability to obtain reconsideration. (*Baldwin v. Home Sav. of America* (1997) 59 Cal.App.4th 1192, 1199.)

Defendant also correctly argues that Plaintiff now seeks to retract the diminution-in-value and stigma allegations of the SAC, which proposed deletions are improper under the sham pleading doctrine: A plaintiff may not amend complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrer or motions for summary judgment. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343-344.) “A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false.” (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877.)

In a nutshell, Plaintiff knew for years that tree roots were intruding onto her property and damaging it. She alleged that it permanently damaged her property by decreasing its value. And regardless of why, she did not pursue this lawsuit against defendant for years. That she could have someone come onto her property and remove the roots is not new or disputed (in fact she has already alleged that she previously did in paragraph 26 of her Second Amended Complaint). Her claims are time-barred.

Finally, the court understands “that sections 437c and 1008 limit the parties’ ability to file repetitive motions but do not limit the court’s ability, on its own motion, to reconsider its prior interim orders so it may correct its own errors.” (*Le François v. Goel* (2005) 35 Cal.4th 1094, 1107.) After having expressly invited Plaintiff to “contest the tentative and appear to explain in reasonable detail what facts Plaintiff can allege to cure” (Order, p.6), the Court heard Plaintiff’s arguments and nonetheless adopted its Tentative Ruling. The Court finds no basis upon which to conclude that it has erred.

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02:00 PM

24-CIV-08178
LINE 3

MICHAEL J. BARRY VS. GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY
COMPANY

MICHAEL J. BARRY
GENERAL MOTORS LLC

MICHAEL H. ROSENSTEIN
RYAN ANTHONY BOWTON

DEFENDANT: GENERAL MOTORS, LLC'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Defendant General Motors LLC's Motion for Summary Judgment is DENIED.

Plaintiff Michael J. Barry's Request for Judicial Notice is DENIED as Moot. (See *Town of Atherton v. California High-Speed Rail Authority* (2014) 228 Cal.App.4th 314, 341.)

Plaintiff Michael J. Barry's evidentiary objections set forth in the separate statement are OVERRULED as procedurally improper. A separate statement in opposition must only contain those items set forth in rule 3.1350(f) in the California Rules of Court, and written objections to evidence must be submitted in the format required by rule 3.1354(b).

Defendant General Motors LLC ("GM") moves for summary judgment on the Complaint, which asserts three causes of action for separate violations of the Song-Beverly Consumer Warranty Act ("SBCWA"): (1) breach of express warranty (Dec. 20, 2024 Complaint, ¶¶ 16–30), (2) breach of implied warranty (*id.*, at ¶¶ 31–42), and (3) failure to make timely repairs (*id.*, at ¶¶ 43–56).

Legal Standard on Summary Judgment

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of each cause of action cannot be established or that there is a complete defense to each cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as to either the cause of action or a defense thereto, as applicable. (*Id.*)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied—despite deficiencies in the opposition—if the burden has not been carried (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416).

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*See* *Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

Unlike summary adjudication—for which GM has not moved here—summary judgment can only be granted when there are no triable issues of material fact as to the entire action. (See Code Civ. Proc., § 437c, subds. (a)(1), (c), (f).) Thus, the failure of a moving party to carry its burden with respect to any of the causes of action set forth in the complaint requires denial of the motion.

Discussion

The initial memorandum of points and authorities in support of the motion sets forth no separate analysis or argument of the third cause of action. Indeed, the only mentions of its existence are in the opening paragraph, where GM requests “summary judgment[on Counts I–III]” and at the end Section A in a parenthetical. (Jan. 29, 2026 Motion for Summary Judgment, p. 1, l. 11 and p. 7, l. 22)

The cause of action is based on subdivision (b) of Civil Code section 1793.2, which provides in relevant part:

[S]ervice and repair shall be commenced within a reasonable time by the manufacturer Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.

(Civ. Code, § 1793.2, subd. (b).) A consumer who is damaged by a violation of this section may recover damages and civil penalties, among other relief. (Civ. Code, § 1794, subds. (a)–(e).) The statutory obligation that repairs be commenced within a reasonable time is independent of the obligation to replace or reimburse when “the manufacturer ... is unable to service or repair a new motor vehicle[.]” (*Id.*, at § 1793.2, subd. (d)(2); see *Gomez v. Volkswagen of America, Inc.* (1985) 169 Cal.App.3d 921, 925 [“Plaintiff had pleaded that he was such a buyer who was injured by a “willful” violation of Civil Code section 1793.2, subdivision (b) which ... requires that ... service and repair shall be commenced within a reasonable time”]; CACI No. 3205.)

GM addresses this cause of action only for the first time on reply, contending that, because GM offered to repurchase or replace on October 30, 2023, Barry has not identified nor did he suffer any damages from any previous failures to commence repair in a reasonable time. However, the Complaint expressly alleges an entitlement to damages beyond replacement or repurchase, including “cover” damages for replacement costs and civil penalties. (Complaint, ¶¶ 54–56.) Certainly, if a manufacturer warrants a vehicle conforms to its purpose and then delays in commencing repair after it is presented, thereby depriving the consumer of the use of not just a conforming vehicle but all use whatsoever, then the consumer has been injured by the failure to commence repair in a reasonable time. A later offer to repurchase or replace the vehicle does not cure the time spent without a vehicle while the manufacturer sits idly in possession of the vehicle. As the party moving for summary judgment, GM bears the onus of demonstrating that Barry is incapable of proving any compensable injury from the dilatory repair attempts.

In support of its argument, GM cites only one case, *Davis v. Ford Motor Credit Co. LLC* (2009) 179 Cal.App.4th 581, 597, for the proposition that when a manufacturer offers to repurchase a vehicle, the consumer cannot have suffered any injury for a delay in commencing repairs. The case has nothing to do with the SBCWA and comes nowhere close to standing for the proposition, for which it is cited. It is addressing what injury a plaintiff must prove in an unfair competition claim.

The facts set forth in the separate statement fail to address whether a violation occurred, and they do not make out a prima facie case that Barry suffered no injury from GM's alleged failure to commence its repair attempts in a timely fashion. (See Jan. 29, 2026 Separate Statement, *passim*.) Accordingly, GM has failed to carry its initial burden with respect to the third cause of action, and the motion is therefore denied.

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02:00 PM

25-CIV-03512 LUXONE LLC VS. DAVID PELLONE

LINE 4

LUXONE LLC
DAVID PELLONE

MARK POE

RESPONDENT: DAVID PELLONE'S MOTION FOR AWARD OF ATTORNEYS' FEES

TENTATIVE RULING:

Respondent David Pellone's motion for reasonable attorney's fees is DENIED.

On May 7, 2025, Petitioner Luxon LLC initiated this action by filing a petition to compel arbitration concerning a dispute arising from a real estate sale contract with Respondent David Pellone. (Petition, filed May 7, 2025.)

California Civil Code § 1717(a) provides that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract ... shall be entitled to reasonable attorney's fees in addition to other costs."

Respondent argues that he is entitled to reasonable attorney's fees under § 1717(a) for prevailing on the petition to compel arbitration in this action. Respondent argues that the fees are warranted pursuant to a clause allowing for such in the Purchase and Sale Agreement ("PSA") between the parties regarding the real estate transaction underlying their dispute. (Sheldon Decl., Ex. 1, PSA.) The provision allows for the awarding "reasonable attorneys' fees and all court or arbitration costs" to the prevailing party in "any legal action, arbitration, or other proceeding between Buyer and Seller arising out of this Contract." (*Id.*, Ex. 1 at 27.G.)

The issue is before the Court is whether Respondent is a prevailing party for the purpose of recovering attorney's fees under Civil Code § 1717. On the one hand, Respondent has prevailed on the petition to compel arbitration in this action. On the other hand, the parties' underlying disputes are still being litigated in Respondent's action.

Respondent relies predominately on *Turner v. Schultz* (2009) 175 Cal.App. 4th 974, 977. Respondent argues that, like *Turner*, arbitrability was determined in this standalone action filed by Petitioner, separate from Respondent's action concerning the dispute arising from the contract. Petitioner argues that his case is akin to *DisputeSuite.com, LLC v. Scoreinc.com* (2017) 2 Cal.5th 968, in which the California Supreme Court held that a party who prevailed on a motion to dismiss based on a forum selection clause was not a prevailing party for the purposes of § 1717 because the parties' underlying claims were not resolved, but only moved to a different forum. (*Id.*, at p. 981-92.)

The Court finds the facts here distinguishable from *Turner* and more akin to *DisputeSuite*.

In *Turner*, a dispute arose between a former employee (Turner) and his employer (and other parties) regarding alleged false representations made to induce Turner into a share buyout agreement. (*Turner*, 175 Cal.App.4th at 977.) Turner refused to participate in arbitration absent a court order. (*Id.*) Turner filed an action in Contra Costa County Superior Court on the underlying disputes. (*Id.*) Shortly thereafter, Turner brought a separate action in the San Francisco Superior Court seeking a declaration that defendants could not proceed in arbitration relating to the agreement until first obtaining a court order, and further seeking an injunction requiring the American Arbitration Association to stay its proceedings until such an order was obtained. (*Id.*, at 978.) There, the trial court granted a motion for judgment on the pleadings against Turner and subsequently granted a motion for attorney's fees incurred by the defendants. (*Id.*) The Court of Appeal upheld the ruling, holding that "irrespective of who becomes the prevailing party in the subsequent arbitration, there was a prevailing party for purposes of section 1717 in this discrete proceeding on the contract, and the trial court could properly award attorney fees." (*Id.*, at 983-84.) The Court concluded its ruling by specifically noting that "[i]t was Turner who initiated both actions; he must accept the consequences of forcing defendants to fight on two fronts."

In *DisputeSuite*, the California Supreme Court distinguished *Turner*, in part, on the basis that *DisputeSuite* did not choose to make the opposing party "fight on two fronts." (*DisputeSuite*, 2 Cal.5th at 980.) Further, the relief sought in *Turner* is distinct from the relief sought in this action. Here, Petitioner sought only to compel arbitration of the parties' underlying dispute, a basic step in resolving a dispute arising from contract where the parties disagree on the applicability of an arbitration clause. In *Turner*, Turner's second action, filed separately from his first action on the underlying dispute, sought declaratory relief declaring that the defendants must obtain a court order before proceeding with arbitration, and further sought to enjoin the American Arbitration Association from proceeding with arbitration of the parties' dispute without such an order.

Accordingly, the Court finds that *DisputeSuite* controls here. The denial of Petitioner's petition to compel arbitration did not make it the prevailing party as matter of law under section 1717, as the parties' underlying disputes for (among other things) breach of contract remain pending in this Court.

Accordingly, Respondent Pellone's motion for attorney's fees is DENIED without prejudice.

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02:00 PM

25-CIV-06722

MARK DALY VS. FCA US LLC, A DELAWARE LIMITED LIABILITY COMPANY

LINE 5

MARK DALY
FCA US LLC, A DELAWARE LIMITED LIABILITY COMPANY

ROGER KIRNOS
MEGHAN MCKAY

DEFENDANT FCA US LLC'S MOTION AND MOTION TO COMPEL ARBITRATION AND STAY ACTION

TENTATIVE RULING:

For the reasons stated below, Defendant FCA US, LLC's ("FCA" or "Defendant") "Motion to Compel Arbitration and Stay Action," filed Dec. 2, 2025, is GRANTED. The case is HEREBY STAYED pending completion of the arbitration.

Plaintiff's May 18, 2026 Objections to Evidence are OVERRULED. The Court agrees that Defendant's counsel lacks personal knowledge of what occurred at the time that Plaintiff signed the Agreement to Arbitrate. But authentication rules are somewhat relaxed in the context of a motion to compel arbitration. The moving party need only establish, by a preponderance of the evidence, that Plaintiff entered into an agreement to arbitrate. Here, **especially** where Plaintiff has not denied signing the Agreement to Arbitrate, the foundation/authentication objections are not well-taken.

On March 20, 2024, Plaintiff leased a new 2024 Jeep Wrangler from Future CDJR of Concord. (McKay Decl., ¶ 2. Ex. A-B.) During the lease process, Plaintiff executed both a Lease agreement with the dealer, and a separate, stand-alone, "Agreement to Arbitrate" ("Agreement to Arbitrate," or "Agreement"), which stated that Plaintiff agreed to arbitrate any claims that Plaintiff might have against FCA. (Id.)

Code Civ. Proc. §§ 1281.2 and 1290.2 create a summary proceeding for resolving petitions to compel arbitration. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The petitioner bears the initial burden of proving the existence of an arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (*Id.*) The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination. (*Id.*)

A party meets its burden of establishing the existence of the arbitration agreement by providing a copy thereof to the Court, or by stating the paragraph verbatim. (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160; Cal. Rules of Court, rule 3.1330.) Here, FCA attaches the Agreement to Arbitrate that Plaintiff signed at the time of the lease. (McKay Decl., ¶ 2. Ex. A-B.) This meets FCA's burden of setting forth a prima facie showing that Plaintiff agreed to arbitrate his claims against FCA. Plaintiff does not dispute, and could not reasonably dispute, that the broad language of the Agreement to Arbitrate encompasses the warranty claims that Plaintiff asserts against FCA.

Plaintiff's arguments that FCA has not provided sufficient foundation for, or authentication of, the Agreement to Arbitrate, are unpersuasive. Again, Plaintiff does not contest that he signed the Agreement to Arbitrate.

Plaintiff argues, in the alternative, that even if the Court finds that Plaintiff agreed to arbitrate his claims against FCA, the Agreement to Arbitrate is unconscionable, and therefore unenforceable. The Court disagrees.

Unconscionability has both a procedural and a substantive element. (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114; *A & M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 486.) The former (procedural) focuses on “oppression” and “surprise” due to unequal bargaining power. (*Armendariz, supra*, at 114.) The latter (substantive) focuses on “overly-harsh” or “one-sided” results. Both must be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (*Id.*) But they need not be present in the same degree. (*Id.*) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” (*Id.*) “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Id.*)

“Procedural unconscionability focuses on the elements of oppression and surprise.” (*Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 701-702.) It “addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.) “Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice.... Surprise involves the extent to which the terms of the bargain are hidden in a ‘prolix printed form’ drafted by a party in a superior bargaining position.” (*Serpa, supra*, 215 Cal.App.4th at 703.)

Plaintiff offers no evidence, or even argument, that the Agreement to Arbitrate was hidden or concealed from him. The evidence shows the opposite—the Agreement to Arbitrate was prominently displayed, and would have been very difficult for Plaintiff to miss. When Plaintiff signed the Lease agreement (between Plaintiff and the Dealer), Plaintiff was presented with a separate, stand-alone, “Notice of Agreement to Arbitrate,” with the letters “FCA” appearing in enlarged print at the top of the page. This document stated, in bold font:

Notice of Agreement to Arbitrate

Pursuant to the Agreement to Arbitrate contained below, you agree that you or FCA will resolve any dispute through a neutral, binding arbitration process and not by a court action.

Immediately below the above language, it provides:

Agreement to Arbitrate

Please carefully read this agreement to arbitrate, which applies to any dispute between you and FCA US LLC and its affiliates (together “FCA,” “we,” or “us”). If you have a concern or dispute, please send a written notice describing it and your desired resolution to FCA US Office of the General Counsel, 1000 Chrysler Drive, CMS 4985-13-62, Auburn Hills, MI 48326-2766.

If your concern or dispute is not received within 60 days, you agree that any dispute arising out of or relating to any aspect of the relationship between you and FCA will not be decided by a judge

or jury but instead by a single arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules in effect at the time you signed this agreement. This includes claims arising out of your warranty and claims arising before this Agreement, such as claims related to statements about our products.

We will pay all AAA fees and costs for any arbitration, which will be held in the city or county of your residence. To learn more about the rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org.

The arbitrator may only resolve disputes between you and FCA and may not consolidate claims without the consent of all parties. You and FCA may bring claims against the other only in your or its individual capacity and not as a plaintiff or class member in any class or representative action If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy (such as declaratory relief), then that claim or remedy (and only that claim or remedy) shall be severed and must be brought in court and any other claims must be arbitrated.

If you prefer, you may instead take an individual dispute to small claims court.

You may opt out of arbitration within 30 days after signing this agreement by a letter to: FCA US Office of the General Counsel, 1000 Chrysler Drive, CMS 485-13-632, Auburn Hills, MI 48326-2766, stating your name, Vehicle identification Number, and intent to opt out of the arbitration provision. If you do not opt out, then this agreement to arbitrate is binding.

YOU AGREE TO THE TERMS OF THIS CONTRACT, YOU CONFIRM THAT BEFORE YOU SIGNED THIS CONTRACT, WE GAVE IT TO YOU, AND YOU WERE FREE TO TAKE IT AND REVIEW IT. YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT BEFORE SIGNING BELOW. YOU CONFIRM THAT YOU RECEIVED A COMPLETELY FILLED-IN COPY WHEN YOU SIGNED IT.

[Plaintiff's signature]

Plaintiff does not dispute that he hand-signed the Agreement to Arbitrate below the above language in all caps. By any objective measure, the Agreement to Arbitrate was quite prominently displayed, and would have been nearly impossible for Plaintiff to miss.

Plaintiff states in his opposing declaration that no one expressly commented on, or explained the Agreement to Arbitrate to him, at the time he signed it. But again, it was very prominently displayed. Plaintiff's claimed failure to read the Agreement does not suggest procedural unconscionability. (*Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC* (2012) 55 Cal. 4th 223, 236 ("An arbitration clause within a contract may be binding on a party even if the party never actually read the clause."))

As to procedural unconscionability, Plaintiff's sole argument is that the Agreement to Arbitrate constitutes an "adhesion" contract (*i.e.*, an agreement presented on a "take-it-or-leave-it" basis). This argument is not supported.

First, Plaintiff offers no evidence supporting his "take-it-or-leave-it" claim. Although Plaintiff has filed a declaration opposing this motion, his declaration does not state that Plaintiff attempted to discuss or

negotiate any document that he signed at the time of his lease, nor that he even cared about arbitration or would have tried to negotiate it, or not sign it, assuming he had been aware of it. Based on his declaration, Plaintiff has no basis for suggesting that the agreement was presented on a “take-it-or-leave-it” basis. The “adhesion” argument is based on pure speculation.

Further, and critically, the 30-day opt-out provision is directly inconsistent with the “take-it-or-it” claim. On its face, even after signing, Plaintiff had 30 days to opt-out of the Agreement to Arbitrate. Even if Plaintiff felt that he needed or wanted more time to consider the documents he was signing (of which there is no evidence), Plaintiff had another month to opt-out of the arbitration agreement, but he chose not to.

There is no procedural unconscionability. Because “[b]oth procedural and substantive unconscionability must be shown for the [unconscionability] defense to be established, [although] “they need not be present in the same degree.” (*Armendariz, supra*, 24 Cal.4th at p. 114.), Plaintiff has not met his burden of demonstrating that the Agreement to Arbitrate is unconscionable. But even were the court to determine that there was some procedural unconscionability, there is also no meaningful substantive unconscionability. While Plaintiff argues that the arbitration agreement only applies to him, on its face it applies to both Plaintiff and FCA.

Plaintiff, alternatively, also argues that the Agreement to Arbitrate lacked consideration because FCA did not offer anything in exchange for Plaintiff’s agreement to arbitrate. The Court disagrees. Plaintiff cites no authority suggesting that the consideration supporting an agreement must be specifically identified in the agreement itself. The consideration can come from the parties’ broader transaction, of which the Agreement to Arbitrate is a part. Here, Plaintiff signed the Agreement to Arbitrate as part of a vehicle lease transaction. Plaintiff also acknowledges that FCA provided Plaintiff with express and implied warranties, and Plaintiff is now suing to enforce those warranties. Plaintiff cannot, and does not, dispute that FCA provided Plaintiff with an express written warranty for the vehicle, and Plaintiff accepted the benefits of that warranty while agreeing to arbitrate any dispute(s) that Plaintiff might have against FCA. This exchange (a promise for a promise) constitutes sufficient consideration for the Agreement to Arbitrate.

For the foregoing reasons, Defendant FCA’s “Motion to Compel Arbitration and Stay the Civil Action” is GRANTED. The case is hereby STAYED pending completion of the arbitration. (Code Civ. Proc. § 1281.4.)

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-CIV-01449 DAVID FRACOLLI VS. ANTON FRISHBERG, ET AL.

LINE 6

DAVID FRACOLLI
ANTON FRISHBERG

BENJAMIE SASOUNIAN
OLGA SAVAGE

DEFENDANTS: ANTON FRISHBERG, DELTA STAR, INC. AND MIKE PEARSON'S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendants Delta Star, Inc., Anton Frishberg, Oscar Morales, and Fernando Villanueva's Demurrer to Plaintiff's First Amended Complaint ("FAC") is **OVERRULED** in part and **SUSTAINED** in part, but only as to the fourth through eighth causes of action , as follows:

Sham Pleading Doctrine

The sham pleading doctrine is an exception to the general rule that courts disregard a prior pleading once an amended pleading has been filed. As articulated in *Colapinto v. Cnty. of Riverside*, "if a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations." (*Colapinto v. Cnty. of Riverside* (1991) 230 Cal. App. 3d 147, 151.) The doctrine's purpose is to "prevent sham pleadings omitting an incurable defect in the case." (*Arce v. Childrens Hosp. Los Angeles* (2012) 211 Cal. App. 4th 1455, 1468, fn 7, quoting *Berman v. Bromberg* (1997) 56 Cal.App.4th 936, 945–946.) A pleader "may not attempt to breathe life into a complaint by omitting relevant facts which made his previous complaint defective." (*Id.*) The doctrine may be triggered either when a plaintiff omits from an amended complaint harmful allegations that appeared in a prior pleading and that rendered it vulnerable to demurrer, or when a plaintiff adds new allegations to an amended complaint that are factually inconsistent with prior allegations. (*Thomas v. Regents of Univ. of California* (2023) 97 Cal. App. 5th 587, 637, fn 22.) Such an omission or inconsistent explanation requires satisfactory explanation. (*Tindell v. Murphy* (2018) 22 Cal. App. 5th 1239.)

Defendants argue that Plaintiff's FAC violates the sham pleading doctrine by omitting details alleged in his original Complaint and alleging new and different details about the OSHA inspection and Plaintiff's subsequent communications with Defendants. Regarding the allegations of the OSHA inspection, Plaintiff's Original Complaint alleges:

In or around July 2025, FRACOLLI was informed by an OSHA representative that DELTA STAR was engaging in serious and illegal safety violations. Specifically, DELTA STAR was found to be spray-painting a solid base paint in a bay on the premises that contained multiple electricity outlets and lacked both airflow and filtration. This aligned with numerous complaints

FRACOLLI received from employees regarding a strong chemical paint odor within the Quality Assurance area on Monday mornings.

(Original Complaint, ¶15.)

Regarding the same events, Plaintiff's FAC alleges that:

13. In or around April 2025, an OSHA inspector visited the facility and explicitly informed FRACOLLI that welding could not be performed in the production area due to a lack of proper exhaust and ventilation.

14. When FRACOLLI brought this severe safety violation to the attention of the EHS department and his supervisor, Defendant ANTON FRISHBERG ("FRISHBERG"), management explicitly told FRACOLLI they "had no choice but to continue production," knowingly allowing the hazards to persist despite the inspector's warnings. In response to this OSHA visit, Defendant MIKE PEARSON (Chief Operating Officer) threatened FRACOLLI, explicitly warning him not to speak with OSHA regarding EHS issues. Management additionally instructed a production supervisor to lie to OSHA and hide materials during audits to avoid fines or a factory shutdown.

15. Refusing to be silenced, FRACOLLI continued to engage in legally protected activity. Between May and July 2025, FRACOLLI repeatedly reported ongoing illegal spray-painting of a solid base paint in a bay that contained multiple electrical outlets and lacked both airflow and filtration. FRACOLLI reviewed surveillance footage and confirmed that the illegal and hazardous spray painting was intentionally being conducted over the weekends to prevent employees from detecting the conduct during regular working hours.

(FAC, ¶¶13-15.)

Plaintiff pleads that his "original, unverified Complaint contained inadvertent drafting errors regarding the precise timeline of the OSHA inspection and Plaintiff's subsequent safety reports" and that these errors were discovered after a factual investigation and more comprehensive review of the evidentiary record. (FAC, ¶¶29-31.) These allegations provide sufficient explanation that Plaintiff's amendments were made to correct inadvertent errors.

The Demurrer is therefore OVERRULED to the extent it is based on the sham pleading doctrine.

First, Second, and Eleventh Causes of Action

Defendants argue that *Plaintiff's First, Second, and Eleventh Causes of Action* alleging wrongful discharge in violation of Lab. Code §§ 1102.5(b), 6310(a), and 98.6(a), which pertain to Plaintiff's alleged reporting of safety violations, fail because Plaintiff has not connected his termination or another

adverse employment action to his reporting of violations. Plaintiff responds, *inter alia*, that a causal connection between his reporting of safety violations in May through July of 2025 and his termination in October of 2025 is established based on allegations of an intermediate hostility. Plaintiff alleges that Defendant Delta Star retaliated against him for exercising his rights by terminating his employment. In support of this allegations, Plaintiff alleges, in part, “direct managerial threats” in the form of a warning not to speak to OSHA regarding Environmental Health and Safety issues, as well as a statement admitting that the two people in a meeting who objected to illegal practices were terminated. (See, e.g. FAC, ¶152.) Plaintiff has alleged the ultimate facts necessary to support these causes of action.

The Demurrer to these causes of action are accordingly OVERRULED.

Third Cause of Action—Age Discrimination Under Gov. Code § 12940(a)

Under Gov. Code § 12940(a), a prima facie case of age discrimination requires four elements: (1) the plaintiff was a member of a protected class (40 years of age or older at the time of the adverse employment action); (2) the plaintiff was qualified for the position sought or was performing competently/satisfactorily in the position held; (3) the plaintiff suffered an adverse employment action; and (4) the adverse action occurred under circumstances suggesting discriminatory motive, such as replacement by a significantly younger person. (*Hoglund v. Sierra Nevada Mem'l-Miners Hosp.* (2024) 102 Cal. App. 5th 56.)

Defendants argue that Plaintiff’s allegations of an inquiry about his retirement plans during the interview before he was hired, statements that a younger person might be more willing to work longer hours and have fewer health issues, and interview of a younger person as a replacement candidate, who was a member of the same protected class based on age, are insufficient to state a cause of action for age discrimination. These allegations go to the element of a discriminatory motive. Defendants characterize the allegations of statements by management about a younger person being more willing to work longer hours and having fewer health issues as being stray remarks that are insufficient to establish discrimination. Taken in conjunction with other allegations, however, and in the context of Plaintiff’s other allegations of health issues, the alleged statements show more than stray remarks and suggest a discriminatory motive.

The Demurrer to this cause of action is accordingly OVERRULED.

Fourth, Fifth, Sixth and Seventh Causes of Action—Interference, Retaliation, Failure to Accommodate and to Engage in the Interactive Process

A CFRA claim requires a “serious health condition” — one involving inpatient care or continuing treatment or supervision by a health-care provider — and notice sufficient to make the employer aware of the need for CFRA-qualifying leave. (*Gibbs v. Am. Airlines, Inc.* (1999) 74 Cal. App. 4th 1, 6-7.) No magic words are required, and the sufficiency of notice is ordinarily a question of fact. (*Avila v. Cont’l Airlines, Inc.* (2008) 165 Cal. App. 4th 1237, 1255). But CFRA expressly excludes “common ailments including a cold, flu, ear ache, upset stomach, and ordinary headaches,” and notice of mere flu-type symptoms is not notice of a need for CFRA leave; the employer “is not required to be clairvoyant.” *Gibbs*, 74 Cal. App. 4th 1, 9.

The FAC alleges only that, on August 20, 2025, Fracolli told Frishberg and HR he was unable to keep anything down and would work from home to avoid taking a full sick day. Although the FAC alleges underlying chronic conditions (Celiac disease, hypothyroidism, atrial fibrillation), it does not allege Fracolli communicated those conditions to Delta Star. As pleaded, the employer was made aware only of a transient upset stomach coupled with a request to keep working — allegations that do not establish notice of a serious health condition.

Duties to inquire and accommodate are triggered only by a known disability — one of which the employer is aware because it is obvious, the employee brought it to the employer’s attention, or the employer otherwise learned of it. (*Featherstone v. S. California Permanente Med. Grp.* (2017) 10 Cal. App. 5th 1150, 1169.) The employee bears the burden of giving notice; the employer has no duty to investigate whether an illness might be a disability, and not every illness qualifies as a disability. (*Id.* at 1167; *Avila v. Cont’l Airlines, Inc.* (2008) 165 Cal. App. 4th 1237, 1252.) The interactive-process duty likewise requires that the employee identify the disability and resulting limitations unless they are open and obvious and the FEHA disability definition excludes “minor and non-chronic gastrointestinal disorders.” (34 Cal. Code Regs. tit. 2, § 11065)

Accordingly, the Demurrer to these causes of action are accordingly SUSTAINED with leave to amend.

Eighth Cause of Action—Harassment Under Gov. Code § 12940(j).

As Defendants have stated, stating a cause of action for a hostile work environment/harassment requires Plaintiff to plead that (1) he belongs to a protected group; (2) he was subjected to unwelcome harassment because of being a member of that group; and (3) the harassment was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (Gov. Code § 12940(j).) Plaintiff’s only allegations in support of this cause of action is that he was refused the right one time to work from home upon his request. This single event is insufficient to support the cause of action.

The Demurrer to this cause of action is accordingly SUSTAINED with leave to amend.

Ninth, Tenth, and Twelfth Causes of Action for Wrongful Termination in Violation of Public Policy, Negligent Hiring, and Unfair Business Practices

Defendants argue that each of these causes of action fail because they rely on the same underlying conduct as predicate claims which are unsupported. As discussed above, some causes of action are sufficient at the pleading stage.

The Demurrer to these causes of action are accordingly OVERRULED.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court’s signature a written order consistent with the Court’s ruling

pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**THERE ARE NO MATTERS ON THE
UNLAWFUL DETAINER LAW & MOTION CALENDAR**



POSTED: 10:10 AM